

**MEMORANDUM OF UNDERSTANDING BETWEEN
STATE CONSTRUCTION DEPARTMENT
AND
CITY OF CHEYENNE**

1. **Parties.** The parties to this Memorandum of Understanding (MOU) are the State Construction Department (SCD), whose address is: 700 W. 21st Street, Cheyenne, WY 82002, and the City of Cheyenne, whose address is: 2101 O'Neil Avenue, Cheyenne, WY 82001.
2. **Purpose.** The purpose of this MOU is to designate the City of Cheyenne, Municipal Building as the primary emergency evacuation assembly area for the SCD.
3. **Term of MOU.** This MOU shall commence upon the day and date last signed and executed by the duly authorized representatives of the parties to this MOU and shall remain in full force and effect until terminated. This MOU may be terminated, without cause, by either party upon thirty (30) days written notice, which notice shall be delivered by hand or by certified mail.
4. **Payment.** No payment shall be made to either party by the other party as a result of this MOU.
5. **Responsibilities of SCD.**
 - A. During an emergency at the SCD Building that requires evacuation, a member of the SCD leadership team will notify the City of Cheyenne as soon as practicable that an evacuation is in progress at the SCD Building, and that employees will be proceeding to the Municipal Building for accountability.
 - a. Primary City of Cheyenne phone number: 307-637-6263
 - b. Secondary City of Cheyenne phone number: 307-638-4394
 - B. SCD employees will meet at the Civic Commons Park during nice weather, and will only shelter inside the Municipal Building during inclement weather or hazardous conditions. Employees will be permitted to use the restrooms as necessary.
 - C. Upon notification of the City of Cheyenne or designee that the Municipal Building is not a suitable assembly area for all SCD employees, SCD employees will be instructed to relocate to their alternative assembly area (Civic Commons Park). City of Cheyenne employees will have precedence in using the Municipal Building during emergencies.
 - D. All SCD employees will comply with the code of conduct of the Municipal Building and with instructions from City of Cheyenne staff, including instructions to relocate, so as to minimize any disruption to the Municipal Building.

6. **Responsibilities of the City of Cheyenne.**

- A. The City of Cheyenne or designee will notify a member of the SCD leadership team if a condition exists that causes the Municipal Building to no longer be a suitable primary evacuation assembly area for the SCD employees.
- a. Primary SCD phone number: 307-287-5748
 - b. Secondary SCD phone number: 307-631-2582
 - c. Tertiary SCD phone number: 307-274-0941

7. **General Provisions.**

- A. **Amendments.** Either party may request changes in this MOU. Any changes, modifications, revisions, or amendments to this MOU which are mutually agreed upon by the parties to this MOU shall be incorporated by written instrument, executed and signed by all parties to this MOU.
- B. **Applicable Law.** The construction, interpretation, and enforcement of this MOU shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this MOU and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.
- C. **Entirety of Agreement.** This MOU, consisting of three (2) pages, represents the entire and integrated agreement between the parties and supersedes all prior negotiations, representations and agreements, whether written or oral.
- D. **Prior Approval.** This MOU shall not be binding upon either party unless this MOU has been reduced to writing before performance begins as described under the terms of this MOU, and unless this MOU is approved as to form by the Attorney General or her representative.
- E. **Severability.** Should any portion of this MOU be judicially determined to be illegal or unenforceable, the remainder of the MOU shall continue in full force and effect, and the parties may renegotiate the terms affected by the severance.
- F. **Sovereign Immunity.** The State of Wyoming, SCD and City of Cheyenne do not waive sovereign or governmental immunity by entering into this MOU, and each fully retains all immunities and defenses provided by law with respect to any action based on or occurring as a result of this MOU.
- G. **Third Party Beneficiary Rights.** The parties do not intend to create in any other individual or entity the status of third-party beneficiary, and this MOU shall not be construed so as to create such status. The rights, duties, and obligations contained in this MOU shall operate only between the parties to this MOU and shall inure solely to the benefit of the parties to this MOU. The provisions of this MOU are

intended only to assist the parties in determining and performing their obligations under this MOU.

8. **Signatures.** The parties to this MOU, through their duly authorized representatives, have executed this MOU on the dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this MOU as set forth herein.

The Effective Date of this MOU is the date of the signature last affixed to this page.

DEPARTMENT OF STATE CONSTRUCTION

Jerry Vincent, Director

Date

CITY OF CHEYENNE

Date
(SEAL)
Attest:

By:

Patrick Collins, Mayor

Kristina F. Jones, City Clerk

ATTORNEY GENERAL'S OFFICE: APPROVAL AS TO FORM

Tyler M. Renner, Supervising Attorney General
Representing: SCD

Date